PAYMENT AUTHORIZATION & INSTALLMENT AGREEMENT

This Payment Authorization and Installment Agreement ("**Agreement**") is entered into by and between:

Fund Forge, a DBA of **Titans Consulting Holding LLC**
("**Fund Forge**," "**Company**," "**we**," "**us**," or "**our**")

and

Customer:
Email:
Address:
("**Customer**," "**you**," or "**your**")

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1. PAYMENT AUTHORIZATION (CARD ON FILE)

Customer authorizes Fund Forge to charge the credit card and/or debit card on file, which was securely collected during a prior onboarding, checkout, or authorization process, for all amounts due under this Agreement.

Customer acknowledges and agrees that:

- Payment information will be securely stored and used for authorized future transactions;
- Payments will be processed automatically in accordance with the agreed payment schedule; and
- **All payments are final and non-refundable**, except as expressly required by applicable law.

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2. PAYMENT TERMS & FINANCIAL DISCLOSURES

- **Monthly Payment Amount:**
- **Payment Frequency:**
- **Down Payment:**
- **Annual Percentage Rate (APR):**
- **Amount Financed:**
- **Total Interest Charges:**
- **Total Payment Plan Amount:**
- **Number of Payments:**

This Agreement is legally binding under the **Uniform Electronic Transactions Act (UETA)**.

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3. PAYMENT SUMMARY (DISCLOSURE)

- **APR:**
- **Finance Charge:**
- **Amount Financed:**
- **Total of Payments:**

Payment Schedule:

- Down Payment:
- Monthly Payments:

Late Payment:

A $50 late fee may be assessed if a payment is more than three (3) days past due.

Prepayment:

Customer may prepay at any time without penalty.

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4. NON-REFUNDABLE IN-HOUSE INSTALLMENT CONTRACT

This Agreement is a **non-refundable, in-house installment contract** for professional or commercial services.

- Payments are earned upon receipt;
- Funds are passed directly to participating service providers and are not escrowed;
- This is **not a consumer loan**, but a contractual installment payment arrangement.

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5. CUSTOMER PROMISE TO PAY

Customer unconditionally agrees to pay all amounts due under this Agreement, regardless of service usage, outcomes, suspension, or termination.

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6. INTEREST ACCRUAL; NO SUSPENSION

Interest on all amounts due under this Agreement shall **continue to accrue at the applicable rate at all times**, **without suspension, tolling, reduction, or interruption**, regardless of any dispute, chargeback, default, acceleration, arbitration, enforcement action, or delay in payment for any reason. Interest shall accrue until all amounts are paid in full in immediately available funds. Acceptance of partial payment does not stop or reduce interest unless expressly agreed **in writing by Fund Forge**.

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7. LATE PAYMENTS, FAILED PAYMENTS & FEES

- **Late Fee:** $50 if payment is more than three (3) days late
- **Failed or Reversed Payment Fee:** $50 per occurrence

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8. FRAUD, DISPUTES & CHARGEBACKS

Fund Forge employs active fraud monitoring, detection, and prevention systems.

Customer **expressly agrees not to dispute, charge back, reverse, or stop payment** for any transaction processed under this Agreement, except through the **mandatory arbitration process**.

Immediate Default; Acceleration; Credit Reporting.
Any dispute, chargeback, reversal, or stop payment—whether initiated by Customer or any third party—constitutes an **immediate material breach and event of default**, **without notice or cure**, resulting in:

- **Immediate acceleration** of the **entire outstanding balance**, due and payable **as of the date the dispute or chargeback is initiated**;
- Immediate right to **negative credit reporting** to consumer and/or business credit bureaus and data furnishers; and
- Exercise of all remedies available under this Agreement and applicable law.

Dispute Fee.
Each improper dispute incurs a **$100 administrative fee per transaction**, added to the balance owed.

Sole Discretion to Accept Repayment.
Fund Forge has no obligation to accept reinstatement or repayment following a dispute or chargeback. If accepted, payment must be made **only by a non-disputable method selected by Fund Forge** (e.g., wire, ACH, certified funds). Acceptance does not waive default, acceleration, interest, fees, credit reporting, or remedies unless expressly agreed **in writing**.

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9. DEFAULT & ACCELERATION

Customer is in default if:

- Any payment is more than three (3) days past due;
- Customer materially breaches this Agreement or any related agreement; or
- Customer violates Section 14 (Non-Disparagement).

Upon default, **all amounts automatically accelerate** and become immediately due and payable, without notice or cure, and services may be suspended.

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10. COLLECTIONS, FEES & ATTORNEY'S FEES

If referred to collections or charged off:

- Collection fees of **33%–40%** of the outstanding balance may apply;
- All collection fees are added to the balance owed;
- Customer agrees to pay all reasonable attorney's fees, court costs, and legal expenses, whether or not arbitration or litigation is filed.

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11. SECURITY INTEREST & LIEN RIGHTS

To secure all obligations, **Customer and Guarantor grant Fund Forge a continuing, first-priority security interest and contractual lien** in **any and all property, assets, and rights of value**, whether now owned or later acquired, including real and personal property, vehicles, bank accounts, receivables, contract rights, legal claims, settlements, judgments, services, work product, and all proceeds.

Customer and Guarantor authorize **UCC-1 filings and lien notices** in any jurisdiction without further notice or consent. This security interest remains until all obligations are paid in full.

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12. CREDIT REPORTING AUTHORIZATION

Customer authorizes Fund Forge to report information relating to this Installment Contract to consumer and/or business credit bureaus and data furnishers, including late payments, defaults, charge-offs, and collection activity, until fully resolved.

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13. FDCPA & FCCPA; ARBITRATION; CLASS ACTION WAIVER; PERSONAL GUARANTEE

Commercial Nature of Transaction

Customer acknowledges that this Agreement relates solely to **professional or commercial services** and **does not involve consumer goods or services**. The parties intend the transaction to be commercial and not subject to the FDCPA or FCCPA to the fullest extent permitted by law.

Personal Guarantee

The undersigned individual ("**Guarantor**") **unconditionally, absolutely, and irrevocably guarantees** full payment and performance of all obligations, jointly and severally with Customer. This is a **continuing guarantee of payment**, not collection.

Arbitration of Consumer Status

Any determination of "consumer" status under the FDCPA or FCCPA shall be resolved **exclusively by binding arbitration**. No court has authority to make such determination.

Prospective Application Only

Any determination that Customer is a "consumer" applies **prospectively only**, with **no retroactive or back-dated remedies**.

Compliance Upon Determination

Only after such determination, and only forward-looking: (a) collection activity will comply with applicable law; (b) non-waivable rights are preserved; and (c) fees and remedies apply only as permitted by law.

Class Action Waiver

All claims must be brought **individually**. **Class, collective, representative, and private-attorney-general actions are waived**, and the arbitrator has no authority to award class relief.

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14. NON-DISPARAGEMENT; DEFAULT; ACCELERATION; CONFESSION OF JUDGMENT

Customer shall not make **any negative or disparaging statements**, **regardless of truth**, about Fund Forge or its affiliates.

Automatic Default & Acceleration.
Any violation is an **immediate material default**; all amounts **automatically accelerate**.

Liquidated Damages.
$5,000 per statement, per occurrence, plus all other amounts owed.

Injunctive Relief & Removal.
Immediate injunctive relief without bond; removal within **24 hours** of demand.

No Truth Defense.
Truth or motive is not a defense.

Confession of Judgment (Where Enforceable).
Customer and Guarantor authorize **judgment by confession**, without notice or hearing, for all accelerated amounts where lawful; severable where prohibited.

Survival & Legal Compliance Exception.
This Section survives termination. Statements strictly required by law are permitted with advance notice where allowed.

15. CONFIDENTIALITY (NDA)

Customer shall keep confidential all non-public, proprietary, financial, and business information disclosed by Fund Forge. This obligation survives termination and payoff.

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16. GOVERNING LAW & VENUE

Governing law: **Florida**.
Exclusive venue (to the extent applicable): **Hillsborough County, Florida**.

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17. BINDING ARBITRATION

All disputes shall be resolved by binding arbitration administered by the **American Arbitration Association (AAA)** in Hillsborough County, Florida.

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18. ASSIGNMENT

Fund Forge may assign this Agreement without notice. Customer may not assign without written consent.

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19. ENTIRE AGREEMENT & SEVERABILITY

This Agreement is the entire agreement. Invalid provisions do not affect the remainder.

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20. SURVIVAL

Payment obligations, interest accrual, collections, security interests, credit reporting, confidentiality, arbitration, class waivers, guarantees, and non-disparagement survive termination.

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21. SIGNATURE & ACCEPTANCE

By signing below, Customer acknowledges and agrees to all terms.

Signature: _____

Date:

Customer Name: